

24STCV20885 24STCV20885

County: los-angeles

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Case Number: 24STCV20885 Hearing Date: June 30, 2026 Dept: 735

Shahrokhi v. Lozano, et al.

Defendant Lozano's Motion to Compel Responses
to Form Interrogatories from Plaintiff;

Defendant Lozano's Motion to Compel Responses
to Special Interrogatories from Plaintiff;

Defendant Lozano's Motion to Compel Responses
to Requests for Production of Documents from Plaintiff

BACKGROUND

This action arises from a motor vehicle accident. On May 1, 2025, Plaintiff Azita Shahroki filed the operative first amended complaint against Defendants Jesse Lozano, State Farm LLC and Hertz Global Holdings, Inc., asserting causes of action for negligence and negligent entrustment.

LEGAL STANDARD

When timely responses to interrogatories are not received, “[t]he party propounding the interrogatories may move for an order compelling response to the interrogatories.” (CCP § 2030.290(b).)

“If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it. . . [t]he party to whom the demand

for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product. . . . The party making the demand may move for an order compelling response to the demand.” (CCP § 2031.300(a)–(b).)

DISCUSSION

Defendant Lozano moves to compel Plaintiff's responses to sets one of form interrogatories, special interrogatories and request for productions of documents. Defendant served the subject discovery on August 27, 2025. After receiving several extensions, Plaintiff's responses were due on November 20, 2025. As of the filing of the motions, responses had not been received.

In opposition, Plaintiff represents that responses were served on June 9, 2026. Plaintiff asserts that Plaintiff's counsel offered to pay the requested sanctions amount for each motion while serving responses in exchange for Defendant taking these motions off calendar. Plaintiff states that Defendant's counsel refused to take the motions off calendar.

In reply, Defendant asserts that Plaintiff's responses are not code-compliant because they contain objections in spite of their untimeliness. Defendant requests the Court order Plaintiff to provide responses without objections and award sanctions.

As responses have been served, the motions are denied as moot. If Defendant takes issue with the content of the responses, the remedy is to meet and confer and file a motion to compel further responses thereafter. The Court declines to award sanctions to either party. As Plaintiff failed to serve timely responses, Plaintiff is not entitled to sanctions. Defendant failed to take these motions off calendar after responses were served and after Plaintiff offered to pay the sanctions. After receipt of responses and the sanctions offer, there was nothing left for the Court to resolve, and the motions should have been taken off calendar.

CONCLUSION

The Court denies Defendant's motions to compel responses to discovery.

The Court denies the parties' requests for sanctions.

Defendant shall give notice.